

Searching for Protections from Search Engines



On January 16, 2013, a California court decided that a middle school science teacher was unfit for the classroom because material from her nine-month stint in the pornography industry had been discovered on the Internet. *USA Today* reported on January 16, 2013, that Judge Julie Cabos-Owen wrote in her opinion, “Although [the woman’s] pornography career has concluded, the ongoing availability of her pornographic materials on the Internet will continue to impede her from being an effective teacher and respected colleague.”¹ The teacher was fired, although she testified that she engaged in this work after her boyfriend left her and she faced financial hardship. In every interview with school district officials reported in the media, the teacher was deemed immoral and incapable of being an excellent role model for her students. News outlets began reporting on March 9, 2011, that a St. Louis high school teacher was fired from her job when a student discovered her previous work as an exotic dancer in the pornography industry in the 1990s. Though she reported that working in the industry was one of the greatest regrets of her life, she was unable to keep her job. School officials decided that her work from nearly two decades before was too much of a distraction to keep her employed. A band teacher in Ohio resigned when her participation in the adult entertainment industry was discovered. A surgical tech was treated with disdain and disrespected at the hospital where she worked when an anesthesia tech recognized her from her adult entertainment films. A real estate salesperson was let go after a coworker recognized her from adult films on the Internet. A freshman at Duke University was eviscerated by her peers when it was discovered that she did porn to pay her way through school. She was trying to pay a \$60,000 annual tuition at her dream school because her parents could not afford to cover it. She was threatened and bullied online and on campus after a member of a Greek fraternity outed her to hundreds of men on campus. An award-winning high school principal

took sexually provocative photos with her husband over the course of many years, and during their divorce, he sent hundreds of photos to the school board, which summarily demoted her after threats to end her long and excellent teaching career. What was privately shared in a marriage became a case of revenge porn that threatened to destroy all that she had earned. Their intimate acts, of which he was a participant, were only used against her. In 2010, the website *IsAnyoneUp.com* allowed users to post anonymous sexually explicit, nude images of men and women that included their name, address, and social media profiles from Facebook or Twitter. The founder of the site, Hunter Moore, faced multiple lawsuits that eventually forced the closure of the site in 2012, but he alleged the website had more than thirty million page views per month.² During the height of his websites “success,” Moore managed to circumvent a number of legal actions because he never claimed *ownership* of the material posted to his site. Copyright claims by victims of revenge porn have been the most viable means for securing take-down notices in the courts and the primary way of getting images down from the web, predicated on lack of consent for distribution. Danny Gold, writing for *TheAwl.com*, interviewed a woman who shared what it felt like to have her images up at the site:

I was submitted to *isanyoneup.com* by my ex-boyfriend. I am confronted by friends, family and strangers that they have seen me naked online everyday. . . . You may think it’s funny but sometimes [I] don’t want to leave my house and go to the mall with my family because I fear somebody will come up to me while I’m with my mother and mention it. My sisters . . . are ashamed to be related with me and want to lie to their friends that they are my sisters. I am a disgrace to my family. . . . My self worth has gone out the window and I worry I may never get it back. This keeps me one step away from happiness every single day. I don’t know what to do anymore.³

The circulation of sexually explicit material has prompted thirty-four states to enact “revenge porn” laws, or laws that address nonconsensual pornography (NCP), defined by the Cyber Civil Rights Initiative as the distribution of sexually graphic images of individuals without their consent.⁴ Laws currently range from misdemeanors to felonies, depending

on the nature of the offense. On December 4, 2015, the first conviction under the California “revenge porn” law, of Noe Iniguez, was reported by the *Los Angeles Times*. Iniguez posted to Facebook a topless photo of his ex-girlfriend, including a series of slurs that included encouraging her employer to fire her.⁵ In December 2015, Hunter Moore of *IsAnyoneUp.com* was sentenced to two and a half years in prison after pleading guilty to “one count of unauthorized access to a protected computer to obtain information for purposes of private financial gain and one count of aggravated identity theft,” according to the *Washington Post*.⁶

What does it mean that one’s past is always determining one’s future because the Internet never forgets?

On the Right to Be Forgotten

These cases in the U.S. are typical, but there are many scenarios that have prompted people to call for expanded protections online. In 2014, the European Court of Justice ruled in the case of *Google Spain v. AEPD and Mario Costeja González*⁷ that people have the right to request delisting of links to information about them from search engines, particularly if that information on the web may cause them personal harm. The pivotal legal decision was not without substantive prior effort at securing “the right to delete,” “the right to forget or be forgotten,” “the right to oblivion,” or “the right to erasure,” all of which have been detailed in order to better distinguish the rights that European citizens have in controlling information about themselves on the web.⁸ In 2009, the French government signed the “Charter of good practices on the right to be forgotten on social networks and search engines,”⁹ which stands as a marker of the importance of personal control over information on the web.¹⁰ Since then, considerable debate and pushback from Google has ensued, highlighting the tensions between corporate control over personal information and public interest in the kinds of records that Google keeps.

At the center of the calls for greater transparency over the kinds of information that people are requesting removal of from the Internet is a struggle over power, rights, and notions of what constitutes freedom, social good, and human rights to privacy and the right to futures unencumbered by the past. The rulings against Google that support the “right

to be forgotten” law currently affects only the European Union. Such legal protections are not yet available in the United States, where greater encroachments on personal information privacy thrive and where vulnerable communities and individuals are less likely to find recourse when troublesome or damaging information exists and is indexed by a commercial search engine. However, Google is still indexing and archiving links about people and groups within the EU on its domains outside of Europe, such as on google.com, opening up new challenges to the notion of national boundaries of the web and to how national laws extend to information that is digitally available beyond national borders. These laws, however, generally ignore the record keeping that Google does on individuals and organizations that are archived and shared with third parties beyond Google’s public-facing search results.

I am not talking solely about the harmful effects of search results for groups of people. I am also concerned about the logic and harm caused by our reliance on large corporations to feed us information, information that ultimately leads us somewhere, often to places unexpected and unintended. In the case of the web results, this means communicating erroneous, false, or downright private information that one would otherwise not want perceived as the “official record” of the self on Google, the effects of which can be devastating. A difficult aspect of challenging *group* versus individual representations online is that there are no protections or basis for action under our current legal regime. Public records, of which web results can be included, whether organized by the state or vis-à-vis corporations, work in service of a privatized public good. Google and other large monopolies in the information and communications technology sector have a responsibility to communities, as much as they do to individuals. Currently, there is key legislation that challenges Google’s records of information it provides about individuals, much of which is being discussed through legislative reforms such as the “right to be forgotten” policies in the European Union,¹¹ and new laws in the U.S. are emerging around “revenge porn.” These tensions need to be taken up by and for communities and groups, particularly marginalized racial minorities in the United States and abroad, whose collective experiences, rights, and representations are not sufficiently protected online. Search results are records, and the records of human activity are a matter of tremendous contestation; they are a battleground over the identity,

control, and boundaries of legitimate knowledge. Records, in the form of websites, and their visibility are power. Ultimately, both individuals and communities are not sufficiently protected in Google's products and need the attention of legislators in the United States.

At a time when state funding for public goods such as universities, schools, libraries, archives, and other important memory institutions is in decline in the U.S., private corporations are providing products, services, and financing on their behalf. With these trade-offs comes an exercising of greater control over the information, which is deeply consequential for those who are already systematically oppressed, as noted by the many scholars I have discussed in this book. They are also of incredible consequence for young people searching for information and ideas who are not able to engage their ideas with teachers, professors, librarians, and experts from a broad range of perspectives because of structural barriers such as the skyrocketing cost of college tuition and the incredible burdens of student debt. If advertising companies such as Google are the go-to resource for information about people, cultures, ideas, and individuals, then these spaces need the kinds of protections and attention that work in service of the public.

In the context of searching for racialized and gendered identities in Google's search engine, the right to control what information or records can exist and persist is important. It is even more critical because the records are presented in a ranking order, and research shows that the public in the U.S. believes that search results are credible and trustworthy.¹² As already noted in the previous chapters, Google exercises considerable discursive and hegemonic control over identity at the group and cultural levels, and it also has considerable control over personal identity and what can circulate in perpetuity, or be forgotten, through take-downs or delisting of bad information. Searches on keywords about minoritized, marginalized, and oppressed groups can yield all kinds of information that may or may not be credible or true, but they surface in a broader culture of implicit bias that already exists against minority groups. The right to be forgotten is an incredibly important mechanism for thinking through whether instances of misrepresentation can be impeded or stopped.

Our worst moments are also for sale, as police database mug shots are the fodder of online platforms that feature pictures of people who have

been arrested. This is a practice that disproportionately impacts people of color, particularly African Americans, who are overarrested in the United States for crimes that they may not be convicted of in court. New platforms such as Mugshots.com and UnpublishArrest.com are services that promise, for a fee of \$399 (one arrest) up to \$1,799 (for five arrests), to remove mug shots from the Mugshots.com database across all major search engines. UnpublishArrest.com notes, “As a courtesy, when permanent unpublishing is chosen and information is unpublished for The Mugshots.com Database; requests will be submitted to Google to have the inactive links (dead links) and mugshots associated with the arrest(s) and Mugshots.com removed from the Google search results. Google results are controlled by Google and as such; courtesy Google submissions are not guaranteed nor are they part of the optional paid service provided. Google’s removal lead times average 7–10 days and can take as long as 4–6 weeks.”¹³ Proponents of this practice, including lawmakers and public-interest organizations, argue that this is a public safety issue and that the public has a right to know who potential criminals are in their communities. Opponents of the practice argue that it is a privacy issue and a matter that inflames the public, particularly people who are not found guilty but who appear guilty given the titillating nature of the public display of these photos.

Research shows just how detrimental the lack of control over identity is. In the 2012 work of Latanya Sweeney, a professor of government and technology at Harvard University and the director of the Data Privacy Lab in the Institute of Quantitative Social Science at Harvard, she showed that Google searches on African American-sounding names are more likely to produce criminal-background-check advertisements than are White-sounding names.¹⁴ Time and again, the research shows that racial bias is perpetuated in the commercial information portals that the public relies on day in and day out. Yet, as I have noted in previous chapters, the prioritization and circulation of misrepresentative and even derogatory information about people who are oppressed and maligned in the larger body politic of a nation, as are African Americans, Native Americans, Latinos, and other peoples of color, is an incredible site of profit for media platforms, including Google. We need to think about delisting or even deprioritizing particular types of representative records. How do we reconcile the fact that ethnic and cultural commu-

nities have little to no control over being indexed in ways that they may not want? How does a group resolve the ways that the public engages with Google as if it is the arbiter of truth?

The recording of human activity is not new. In the digital era, the recordings of human digital engagements are a matter of permanent record, whether known to people or not. Memory making and forgetting through our digital traces is not a choice, as information and the recording of human activities through digital software, hardware, and infrastructure are necessary and vital components of the design and profit schemes of such actions. The information studies scholars Jean-François Blanchette and Deborah Johnson suggest that the tremendous capture and storage of data, without plans for data disposal, undermines our “social forgetfulness,” a necessary new beginning or “fresh start,” that should be afforded people in the matter of their privacy record keeping. They argue that much policy and media focus has been on the access and control that corporations have over our personal information, but less attention had been paid to the retention of our every digital move.¹⁵

The Edward Snowden revelations in 2014 made some members of the public aware that governments, through multinational corporations such as Verizon and Google, were not only collecting but also storing private records of digital activity of millions of people around the world. The threats to democracy and to individual privacy rights through the recording of individuals’ information must be taken up, particularly in the context of persistent racialized oppression.

I foreground previous work about why we should be concerned about data retention in the digital world and the ways in which the previous paper-based information-keeping processes by institutions faced limits of space and archival capacity. These limits of space and human labor in organization and preservation presupposed a type of check, or “institutional forgetfulness,”¹⁶ that was located in the storage medium itself, rather than relating to policy limits on holding information for long periods of time. Oscar Gandy, Jr., aptly characterizes the nature of why forgetting should be an important, protected right:

The right to be forgotten, to become anonymous, and to make a fresh start by destroying almost all personal information, is as intriguing as it is extreme. It should be possible to call for and to develop relation-

ships in which identification is not required and in which records are not generated. For a variety of reasons, people have left home, changed their identities, and begun their lives again. If the purpose is non-fraudulent, is not an attempt to escape legitimate debts and responsibilities, then the formation of new identities is perfectly consistent with the notions of autonomy I have discussed.¹⁷

These rights to become anonymous include our rights to become who we want to be, with a sense of future, rather than to be locked into the traces and totalizing effect of a personal history that dictates, through the record, a matter of truth about who we are and potentially can become. The record, then, plays a significant ontological role in the recognition of the self by existing, or not, in an archived body of information.¹⁸ In the case of Google, though not an archive of specific intent organized in the interest of a particular concern, it functions as one of the most ubiquitous and powerful record keepers of digital engagement. It records our searches or inquiries, our curiosities and thoughts.

The record, then, in the context of Google, is never ending. Its data centers, as characterized in a recent YouTube video produced by Google,¹⁹ keep copies of our personal information on at least two servers, with “more important data” on digital tape. The video does not explain which data is considered most important, nor does it state how long data is stored on Google’s servers. In many ways, Google’s explanations about how it manages data storage speaks to and assuages the sensitivity to issues about Web 2.0 transactions such as credit card protections or secure information (Social Security numbers, passwords) transmitted over the Internet that might be used for online financial or highly private transactions.

Google says,

We safeguard your data.

Rather than storing each user’s data on a single machine or set of machines, we distribute all data—including our own—across many computers in different locations. We then chunk and replicate the data over multiple systems to avoid a single point of failure. We randomly name these data chunks as an extra measure of security, making them unreadable to the human eye.

While you work, our servers automatically back up your critical data. So when accidents happen—if your computer crashes or gets stolen—you can be up and running again in seconds.

Lastly, we rigorously track the location and status of each hard drive in our data centers. We destroy hard drives that have reached the end of their lives in a thorough, multi-step process to prevent access to the data.

Our security team is on-duty 24x7.

Our full-time Information Security Team maintains the company's perimeter defense systems, develops security review processes, and builds our customized security infrastructure. It also plays a key role in developing and implementing Google's security policies and standards.

At the data centers themselves, we have access controls, guards, video surveillance, and perimeter fencing to physically protect the sites at all times.²⁰

The language of privacy and security, as articulated by Google's statements on data protection, does not address what happens when you want your data to be deleted or forgotten. Indeed, Google suggests that when you delete data from an application, it is wiped from the Google servers:

Deleted Data

After a Google Apps user or Google Apps administrator deletes a message, account, user, or domain, and confirms deletion of that item (e.g., empties the Trash), the data in question is removed and no longer accessible from that user's Google Apps interface.

The data is then deleted from Google's active servers and replication servers. Pointers to the data on Google's active and replication servers are removed. Dereferenced data will be overwritten with other customer data over time.²¹

But these explanations do not address the myriad ways that records are created and circulated through Google's products and how we lose control over information about ourselves. Recently, Darlene Storm wrote an article for *ComputerWorld* citing researchers who purchased twenty mobile phones from Craigslist and eBay only to find thousands of photos, emails, and texts—including deleted messages through

Facebook—after doing factory resets of their data.²² The most acute breaches of personal security were on Android smartphones, after using Google’s software to allegedly wipe them clean. Personal information at the level of device and infrastructure is not forgotten and can be circulated with ease.

The ways in which our human activities are recorded and stored are vast, and the value of social forgetfulness is not just good for individuals but is good for society. We should frame it as a public or social good:

A world in which there is no forgetfulness—a world in which everything one does is recorded and never forgotten—is not a world conducive to the development of democratic citizens. It is a world in which one must hesitate over every act because every act has permanence, may be recalled and come back to haunt one, so to speak. Of course, the opposite is equally true: A world in which individuals are not held accountable over time for the consequences of their actions will not produce the sense of responsibility that is just as necessary to a democratic society. Thus, achieving the appropriate degree of social forgetfulness is a complex balancing act, ever in tension between the need to hold accountable, and the need to grant a “fresh start.”²³

Google’s position about forgetting has stood in stark contrast to previous conceptions of memory and forgetting, as Napoleon Xanthoulis of the Dickson Poon School of Law at King’s College London articulated in his important article theorizing the rights of individuals to control their data privacy as a fundamental human rights issues: a “right to cyber-oblivion.” He notes that Google’s chief privacy officer, Peter Fleisher, has argued against cyber-oblivion, or record wiping, as “an attempt to give people the right to wash away digital muck, or delete the embarrassing stuff.”²⁴ Indeed, Google’s position has been that the recording of everything we do is a matter of the cultural record of humanity, “even if it’s painful.”²⁵ Both Xanthoulis and Blanchette and Johnson argue that it is important that bad actors, violators of the public trust, and ill-intentioned public officials not necessarily be allowed to erase their deeds from the digital record. This has been Google’s general disposition toward erasures of information from its records. However, Google has begun to respond to pressures to change its algorithm. On August

10, 2012, Google announced on its blog that it would be pushing further down in its ranking websites with valid complaints about copyright infringement.²⁶ Google suggested that this would help users find more credible and legitimate content from the web. This decision was met with much commendation from powerful media companies—many of which are Google’s advertising customers. These companies want to ensure that their copyrighted works are prioritized and that pirated works are not taking prominence in Google’s web results.

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There are many troubling issues to contend with when our every action in the digital record is permanently retained or is retained for some duration so as to have a lasting impact on our personal lives. Privacy and identity ownership are constructed within a commercial web space such as Google, and Google controls the record. Subjects and publics are documented through Google’s algorithms, and displays of search results are decidedly opportunistic and profitable. While tremendous focus on “right to be forgotten” legislation is on control of records that are publicly visible on the web (e.g., websites, images, audio files, etc.), more attention needs to be paid to information that is collected and archived by Google that is not visible to the public. These records are conveyed by Google as necessary for its product development and for enhanced consumer experiences (see Google’s privacy policy). However, Google’s record keeping has its genesis in providing information shared across its networked services for its clients, which include U.S.-based national security agencies, as well as Google’s commercial partners. Increased attention must be paid to both the visible and invisible ways that identity information and records of activity can be archived through Internet infrastructures, buttressed by Google’s monopoly on information services in the United States. Inevitably, the power differentials between the record keepers, in this case a private company such as Google, and those who are recorded are insurmountable. Google’s power is only buttressed by its work on behalf of the U.S. government, which has outsourced its data collection and unconstitutional privacy invasions to the company.²⁷

The goal of elevating these conversations is to recognize and name the neoliberal communication strategies used by Google to circumvent or suppress its record keeping of the public through surveillance, par-

ticularly in its privacy policies and responses to “right to be forgotten” public policy. Google’s control and circumvention of privacy and the right to be forgotten intensifies damage to vulnerable populations. As I have previously argued, Google is, at one moment, implicated in prioritizing predatory misrepresentations of people, such as algorithmically privileging sexualized information about women and girls, because it is profitable. In another moment, it is providing our records to third parties. While Google has consistently argued that “right to oblivion” laws are unfairly shifting the record of real-world human activity, which it believes the public has a right to know, recent leakages of requests for take-down notices were reported in the British media, showing that the nature of take-down requests is much more personal and relevant to everyday people, rather than public figures skirting responsibility to some alleged public interest.

On July 14, 2015, the *Guardian* reported that “less than 5% of nearly 220,000 individual requests made to Google to selectively remove links to online information concern criminals, politicians and high-profile public figures . . . with more than 95% of requests coming from everyday members of the public.”²⁸ What is critical to this new revelation is that previously Google’s statements about the nature of “right to be forgotten” requests have been exaggerated or unknown because delisting information from its records has not been transparent, despite calls for information about the nature of the requests from over eighty academics in a letter authored by Ellen P. Goodman, a professor of law at Rutgers University, and Julia Powles, a researcher at the University of Cambridge Faculty of Law.²⁹ In an open letter to Google, the scholars not only argue that the public has a right to have information taken out of Google’s search engine and all other engines subject to data protection rulings, but they also state,

Google and other search engines have been enlisted to make decisions about the proper balance between personal privacy and access to information. The vast majority of these decisions face no public scrutiny, though they shape public discourse. What’s more, the values at work in this process will/should inform information policy around the world. A fact-free debate about the RTBF [right to be forgotten] is in no one’s interest.³⁰

Challenging content on the web under the auspices of the right to be forgotten must extend beyond the take down of personal information and beyond erasing the memory of past acts from the web. The right to be forgotten must include the recognition of all forms of records that Google is archiving and sharing with third parties, both visible and invisible to the public.

The discussion about the right to be forgotten has largely lived in the frameworks of contesting neoliberal control and encroachments on social and public life organized around unstable notions of a public sphere. In the academics' letter, calls for transparency about delisting requests point to the ways that ideologies of transparency privilege a kind of fact-based, information-oriented gathering of evidence to make clear and thoughtful decisions within the context of how privacy should operate within the records of Google. The questions about who controls the records of our social life and how they can be forgotten must move to the fore in the United States. They are explicitly tied to who can own identity markers and how we can reclaim them at both the individual and community level.

Librarians and information professionals are particularly implicated in these projects. In 2016, the librarian Tara Robertson wrote an important blog post to the profession about why all information should not be digitized and made available on the open web. Robertson's point is that people share material, thoughts, and communications with each other in closed communities, as in the case of the digitization of *On Our Backs*, a lesbian porn publication that had a limited print run and circulated from 1984 to 2004, prior to the mainstreaming and commercialization of content on the web that we see today. People who participated in the publication did so before there was an Internet, before digitization would make the material public.³¹ Robertson raises the important ethical issues, as have many other researchers, about what should be digitized and put on the open web and what belongs to communities with shared values, to be shared within a community:

In talking to some queer pornographers, I've learned that some of their former models are now elementary school teachers, clergy, professors, child care workers, lawyers, mechanics, health care professionals, bus drivers and librarians. We live and work in a society that is homopho-

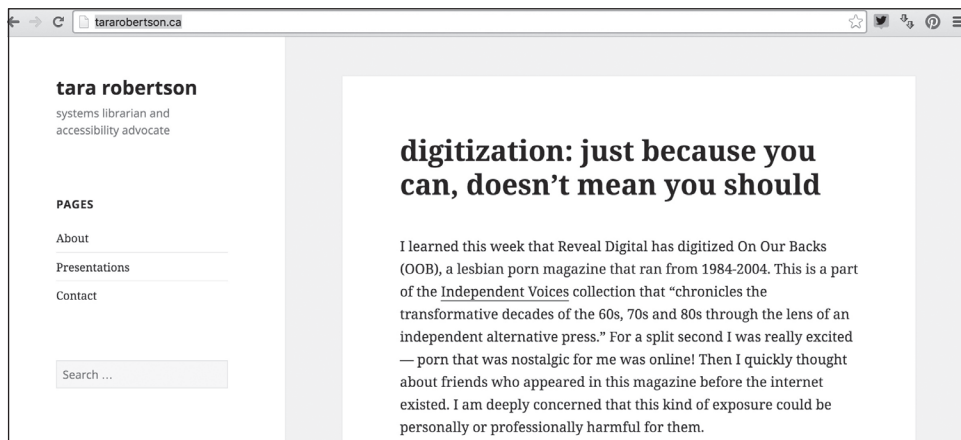


Figure 4.1. Call to librarians not to digitize sensitive information that was meant to be private, by Tara Robertson.

bic and not sex positive. Librarians have an ethical obligation to steward this content with care for both the object and with care for the people involved in producing it.³²

On Our Backs has an important history. It is regarded as the first lesbian erotica magazine to be run by women, and its title was a cheeky play on the name of a second-wave, and often antipornography, feminist newspaper named *Off Our Backs*. *On Our Backs* stood in the sex-positive margin for lesbians who were often pushed out of the mainstream feminist and gay liberation movements of the 1970s–1990s. What Robertson raises are the ethical considerations that arise when participants in marginalized communities are unable to participate in the decision making of having content they create circulate to a far wider, and outsider, audience. These are the kinds of issues facing information workers, from the digitization of indigenous knowledge from all corners of the earth that are not intended for mass public consumption, to individual representations that move beyond the control of the subject. We cannot ignore the long-term consequences of what it means to have everything subject to public scrutiny, out of context, out of control.

Ultimately, what I am calling for is increased regulation that is undergirded by research that shows the harmful effects of deep machine-

learning algorithms, or artificial intelligence, on society. It is not just a matter of concern for Google, to be fair. These are complex issues that span a host of institutions and companies. From the heinous effects manifested from Dylann Roof's searching on false concepts about African Americans that may have influenced his effort to spark a race war, to the ways in which information can exist online about people and communities that can be nearly impossible to correct, to the owning of identity by the highest bidder—public policy must address the many increasing problems that unregulated commercial search engines pose. In addition to public policy, we can reconceptualize the design of indexes of the web that might be managed by librarians and information institutions and workers to radically shift our ability to contextualize information. This could lead to significantly greater transparency, rather than continuing to make the neoliberal capitalist project of commercial search opaque.